IN THE HIGH COURT OF JUDICATURE AT BOMBAY

(APPELLATE SIDE • WRIT JURISDICTION • BENCH OF HON'BLE MR. JUSTICE A. S. GADKARI)

WRIT PETITION NO. 5122 OF 2024

DATED THIS THE 21ST DAY OF OCTOBER, 2024

BETWEEN:

DR. RADHIKA SINGHANIA, **... PETITIONER**
Director, Singhania Infotech & E-Commerce Pvt. Ltd., Mumbai

(By Adv. Mihir Desai, Senior Advocate with Adv. Subhash Jha)

AND:

1. STATE OF MAHARASHTRA, Through Cyber Police Station (Bandra Kurla Complex) **... RESPONDENTS**
2. HDFC BANK LIMITED, Commercial Branch, Fort, Mumbai

(By Sri. Amit Palkar, APP for State / Cyber Cell;
Adv. S. K. Nair for Respondent No.2 Bank)

ORDER & JUDGMENT

1. By this petition under Article 226 of the Constitution of India, the petitioner seeks immediate quashing of the indefinite debit block placed upon her commercial bank account with respondent No.2 Bank having an active balance of Rs. 38,50,000/-.

2. The freeze was placed pursuant to an automated requisition emanating from a cyber fraud complaint lodged on the 1930 NCRP portal in Gujarat, alleging that an amount of Rs. 2,15,000/- received in commercial sale of IT hardware was traced to a fraudulent Layer-3 transaction.

3. We have heard learned Senior Counsel Adv. Mihir Desai for the petitioner and the learned APP for the State.

4. A requisition sent through the NCRP portal does not dispense with statutory compliance under Section 102(3) of the Cr.P.C. or Section 106(3) of the BNSS, 2023. Where the police agency fails to issue a formal statutory seizure order and fails to report to the Magistrate within thirty days, private banks cannot continue to stifle legitimate commercial accounts indefinitely.

OPERATIVE DIRECTIONS

(i) The Writ Petition is allowed.

(ii) Respondent No.2 Bank is directed to immediately lift the debit block on the petitioner's current account, restricting lien strictly to Rs. 2,15,000/- pending investigation.

(iii) Cyber Police is directed to conclude preliminary scrutiny within 30 days.

CERTIFIED TRUE COPY
High Court of Karnataka / Registry
Copy Application No: CA-28912/2024
Examined by: Superintendent (Judicial)

Sd/-
REGISTRAR (JUDICIAL)
HIGH COURT OF RECORD
Seal Affixed on Date of Pronouncement